

Moreover, the Court acknowledges that Ms. Carson’s demurrer should have been accepted for filing when submitted in mid-June.

Based on the foregoing, the Court elects to defer consideration of the merits of the instant Motion until after issues regarding the adequacy of the SAP are resolved. As the hearing on the SAP is now continued to September 23, 2026, the time for Ms. Carson to file a demurrer has not yet run. (See *Goebner, supra*, 110 Cal.App.5th at 1113.) The Court notes that nothing in the *Goebner* holding, and no other authority known to the Court, prohibits Ms. Carson from setting hearing on the demurrer in advance of the hearing on the SAP (so long as the notice and filing requirements of the Code of Civil Procedure are complied with). The Court further notes that, while *Goebner* and the Probate Code *permit* the demurrer to be filed before or at the hearing on the SAP, the realities of the Court’s resource limitations would very likely require a continuance of both hearings if the filing occurs less than the fifteen Court days prior thereto.

.....
In The Matter of Deana A Pena

26PR000116

PETITION FOR LETTERS OF ADMINISTRATION

TENTATIVE RULING: There is no proof of publication on file.

If a proper proof of publication is filed prior to the hearing, the petition will be CONTINUED to September 4, 2026, at 8:30 a.m. in Dept. A to allow Petitioner to remedy the deficiencies listed below. Petitioner may wish to contact a probate attorney or the Court’s self-help center regarding the below deficiencies.

- (1) There is no completed Proof of Service on all heirs on file. (Prob Code, §§ 8100, 8110). The Court notes that the only other heir listed in the Petition is Decedent’s Husband, whose location is reported “unknown.” To the extent Petitioner is unable to complete service of the Petition on Decedent’s Husband, Petitioner is directed to submit a declaration demonstrating due diligence in attempting to locate him, and a Proposed Order Dispensing with Notice (Form GC-021).
- (2) There is no Duties and Liabilities form (DE-147) on file.
- (3) The Petition requests both Letters of Administration and Letters of Special Administration. (See Pet., Caption and § 2(b)(3)-(4).) Because the Petition does not appear to request limited authority pending issuance of permanent letters, the Court construes the Petition only as one for Letters of Administration. To the extent Petitioner disagrees with this interpretation, he shall file an Amended Petition.
- (4) The Petition states that Decedent died intestate (see Pet., § 3(f)(1)) and also includes allegations inconsistent therewith (see *id.*, §§ 2(b)(1), 3(g)(1)). Because the Petition is one for Letters of Administration (consistent with an intestate decedent), the Court will accept the intestacy allegations as accurate and will construe the inconsistent allegations as inadvertent errors. To the

extent Petitioner disagrees with this interpretation, he shall file an Amended Petition.

- (5) The Petition states that all heirs at law have waived bond. (Pet., § 3(e)(3).) However, there are no bond waiver forms (DE-142/DE-111) in the file. Petitioner is directed to submit bond waiver forms by all heirs. Otherwise, the proper amount of bond to be imposed is \$420,000. (Prob. Code, § 10453.)
- (6) There is no proposed order (DE-140) or proposed letters (DE-150) on file.

However, if no publication has been made, the Court will be forced to DENY the Petition without prejudice. Proper publication is required to invest the Court with subject matter jurisdiction over the Estate. (Prob. C. § 8005, subd. (b)(1)(C).) Therefore, the Petition may not be heard unless and until an affidavit of publication is on file. (Prob. C. § 8124.) The first of the three required publications must be at least 15 days before the hearing. (Prob. C. §8121(a).) Finally, the hearing on the Petition must be no less than 15 days and no more than 30 days after the Petition is filed. (Prob. C. §8003(a).) For this reason, if no proper publication of the hearing was made, the Court is without jurisdiction to hear the Petition and cannot continue the hearing to permit Petitioner to cure the defect.

.....

Estate of Allen Paul Stanton

26PR000120

PETITION FOR LETTERS OF ADMINISTRATION AND AUTHORIZATION TO
ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: The matter is CONTINUED to August 20, 2026, at 8:30 a.m. in Dept. A to allow Petitioner to remedy the following issue. The Petition indicates that bond is not required because all beneficiaries waive bond. (See Pet., at §§ 2, subd. (d)(1) and 3, subd. (e)(3).) There is, however, no waiver on file for identified heir JoAnn Wanek.

.....

Estate of Lydia Fajardo Santos

26PR000142

PETITION FOR LETTERS OF ADMINISTRATION AND AUTHORIZATION TO
ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: There is no proof of publication on file. If a proper proof of publication is filed prior to the hearing, the petition will be GRANTED, Richard S. Thomas will be appointed as probate referee, and the matter will be set for a Status Hearing Re: Final Distribution on August 04, 2027, at 8:30 a.m. in Dept. A. Petitioner will need to submit Proposed letters (DE-150) for the Court's signature.

However, if no publication has been made, the Court will be forced to DENY the Petition without prejudice. Publication is required to invest the Court with subject matter jurisdiction over the Estate. (Prob. C. § 8005, subd. (b)(1)(C).) Therefore, the Petition may not be heard unless and until an affidavit of publication is on file. (Prob. C. § 8124.) The first of the three required publications must be at least 15 days before the hearing. (Prob. C. §8121(a).) Finally, the hearing